CYNTHIA G. LAWRENCE (SBN 148927)
BRYAN L. MALONE (SBN 144082)
BLAZE VAN DINE (SBN 251946)
SIMS, LAWRENCE & BROGHAMMER
1478 Stone Point Drive, Suite 450
Roseville, CA 95661
Telephone: (916) 797-8881
Facsimile: (916) 253-1544
Email: cynthia@sims-law.net
bryan@sims-law.net
blaze@sims-law.net
SLB@sims-law.net

Attorneys for Defendant
KATIE PALACIOS and
HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION (sued and served as The Hope Program)

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. KATIE PALACIOS, Clinical Director, HOPE Program (Stockton, California), an individual; HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation; and DOES 1-10, inclusive, Defendants.	Case No.: STK-CV-UF-2026-0001032 **DEFENDANT KATIE PALACIOS' RESPONSES TO PLAINTIFF'S SPECIAL INTERROGATORIES, SET ONE** Complaint Filed: February 10, 2026 Trial Date: TBD

PROPOUNDING PARTY: Plaintiff BRENDAN NGEHSI NEWANFORBI

RESPONDING PARTY: Defendant KATIE PALACIOS

SET NO: ONE

Defendant KATIE PALACIOS ("PALACIOS" or "Defendant" or "Responding Party") hereby objects and responds to Plaintiff BRENDAN NGEHSI NEWANFORBI's ("Propounding Party") Special Interrogatories, Set One, as follows:

PRELIMINARY STATEMENT

The following responses are made solely for the purpose of this pending action. Documents eventually produced in response to the Special Interrogatories and any individual request therein, are subject to admissibility, as well as to any and all other objections on any grounds that would require the exclusion of any statement therein if the information were introduced in court. All objections and grounds for such objections are expressly reserved and may be interposed at the time of any motion or trial.

These responses are based on discovery available as of the date hereof. Discovery is continuing, and these responses are accordingly subject to revision. Further discovery, independent investigation, and analysis may supply additional facts and add meaning to known facts, as well as establish entirely new factual conclusions and legal contentions, all of which may lead to additions, changes to, or variations from the information set forth herein. These responses are given without prejudice to Defendant's right to produce, respond, or rely on subsequently discovered information, facts, or documents. Defendant accordingly reserves the right to change the response herein as additional facts are ascertained, analysis is made, legal research is completed, and contentions are made. The responses contained herein are made in a good faith effort to comply with the provisions of the California Rules of Civil Procedure but are in no way deemed to prejudice Defendant with respect to further discovery, research, and analysis.

RESPONSES TO SPECIAL INTERROGATORIES, SET ONE

SPECIAL INTERROGATORY NO. 1:

Describe in detail YOUR role(s), title(s), and supervisory responsibilities at HOPE during the RELEVANT PERIOD, including the dates each role was held and to whom YOU reported.

RESPONSE TO SPECIAL INTERROGATORY NO. 1

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrase "supervisory responsibilities." Responding Party objects that this request is overbroad and

burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party also objects that this request is compound and disjunct and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the above objections, Responding Party responds as follows:

During the RELEVANT PERIOD Responding Party was Clinical Director. As Clinical Director Responding Party provides direct clinical services to clients, including assessments, group and individual therapy, aids in the creation of policies and procedures related to clinical quality and risk, aids in supporting timely trainings to treatment staff, serves as a resource to the treatment team on current research, and assists in documentation pursuant to contractual requirements and for regulatory boards.

SPECIAL INTERROGATORY NO. 2:

IDENTIFY every clinician, intern, supervisee, or staff member who reported, directly or indirectly, to YOU at the STOCKTON FACILITY during the RELEVANT PERIOD, and for each, state the dates of the reporting relationship.

RESPONSE TO SPECIAL INTERROGATORY NO. 2:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrase "reported, directly or indirectly." Responding Party objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party further objects to the extent this request calls for a legal conclusion and/or expert opinion. Responding Party objects further to this interrogatory as it seeks to violate a third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. Responding Party further objects to the extent this request calls for a legal conclusion and/or expert opinion.

Responding Party also objects that this request is compound and conjunct and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Pursuant to the above objections, Responding Party cannot and will not respond to this special interrogatory.

SPECIAL INTERROGATORY NO. 3:

Describe YOUR personal authority during the RELEVANT PERIOD to make, recommend, or veto: (a) phase-progression decisions for parolee participants; (b) treatment-completion determinations for parolee participants; and (c) discharge recommendations transmitted to CDCR/DAPO.

RESPONSE TO SPECIAL INTERROGATORY NO. 3:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Objection: This discovery request is so broad and unlimited as to time and scope as to be an unwarranted annoyance, embarrassment, and is oppressive. The request is vague and ambiguous as to the terms "describe" and "recommend". Responding Party also objects that this request is compound, conjunct, disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the above objections, Responding Party responds as follows: Responding Party has no authority to make, recommend, or veto: (a) phase-progression decisions for parolee participants; (b) treatment-completion determinations for parolee participants; and (c) discharge recommendations transmitted to CDCR/DAPO. Responding Party has served as a member of a Containment Team pursuant to 15 C.C.R. § 3574. The Containment Team as a group may make a determination to retain a parolee in a sex offender management program.

SPECIAL INTERROGATORY NO. 4:

IDENTIFY every CTM concerning PLAINTIFF that YOU attended in person, by telephone, or by videoconference during the RELEVANT PERIOD, and for each, state the date, location, and

other persons present.

RESPONSE TO SPECIAL INTERROGATORY NO. 4:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. The request is vague and ambiguous as to the phrase "date of preparation." Responding Party objects that this discovery request seeks information protected by a third party and employee's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. Responding Party also objects that this request is compound, conjunct, disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the above objections, Responding Party responds as follows:

- August 22, 2022: Attended by Parole Agent Arestad and Parole Unit Supervisor Alcoriza.
- February 19, 2023: Attended by Parole Agent Arestad and Parole Assistant Unit Supervisor Alcoriza.
- August 21, 2023: Attended by Parole Agent Arestad and Parole Assistant Unit Supervisor Alcoriza.
- February 29, 2024: Attended by Parole Agent Acierto and Parole Assistant Unit Supervisor Alcoriza.
- August 20, 2024: Attended by Parole Agent Urrea and Parole Assistant Unit Supervisor Mike Alcoriza.
- February 18, 2025: Attended by Parole Agent Urrea and Parole Acting Assistant Unit Supervisor Krista Jimenez.
- August 19, 2025: Attended by Parole Agent Derrick and Parole Assistant Unit Supervisor Gary Noguchi.
- February 18, 2026: Attended by Parole Agent Sosa and Parole Assistant Unit Supervisor Gary

Noguchi.

SPECIAL INTERROGATORY NO. 5:

State the date YOU first became aware that HOPE retained parolee participants in treatment for the entire duration of parole and did not deem any parolee to have completed treatment prior to parole discharge, and IDENTIFY all DOCUMENTS reflecting that awareness.

RESPONSE TO SPECIAL INTERROGATORY NO. 5:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Further objection is made that this interrogatory is argumentative and assumes that HOPE retained participants in treatment for the entire duration of parole. This discovery request is so broad and unlimited as to time and scope as to be an unwarranted annoyance, embarrassment, and is oppressive. The request is vague and ambiguous as to the terms "aware" and "awareness." Responding Party objects that this discovery request seeks information protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030 and a third party and employee's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. Responding Party also objects that this request is compound, conjunct, disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the above objections, Responding Party responds as follows:

Responding Party is not aware that HOPE retained parolee participants in treatment for the entire duration of parole and did not deem any parolee to have completed treatment prior to parole discharge.

SPECIAL INTERROGATORY NO. 6:

IDENTIFY each parolee under YOUR supervision at the STOCKTON FACILITY during the RELEVANT PERIOD whom YOU determined or recommended to have completed treatment prior to parole discharge. (Anonymized identifiers, e.g., "Client A," are sufficient.)

RESPONSE TO SPECIAL INTERROGATORY NO. 6:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects further that this request is vague and ambiguous as to the phrase "completed treatment." Responding Party also objects to this interrogatory on the grounds that it calls for information potentially in violation of third-party privacy rights guaranteed under the United States Constitution and Article I, Section I of the California Constitution. *See Younger v. Berkeley City Council* (1975) 45 Cal.App.3d 825, 832. Responding Party objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party further objects to the extent this request calls for a legal conclusion and/or expert opinion Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq.

Pursuant to the above objections, Responding Party cannot and will not respond to this special interrogatory.

SPECIAL INTERROGATORY NO. 7:

State all reasons YOU did not, at any CTM during the RELEVANT PERIOD, recommend that PLAINTIFF be deemed to have completed treatment, separately for each CTM YOU attended, and IDENTIFY all DOCUMENTS supporting each reason.

RESPONSE TO SPECIAL INTERROGATORY NO. 7:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrase "be deemed to have completed treatment" and unintelligible as phrased. Responding Party objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party further

objects to the extent this request calls for a legal conclusion and/or expert opinion. Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq.

Subject to and without waiving the above objections, Responding Party responds as follows:

Responding Party could not recommend that Plaintiff be deemed to have completed treatment because Plaintiff had not completed the treatment phases as required. Documents evidencing this include Plaintiff's Progress Report & Treatment Plan Updates and the HOPE Program Curriculum Tracking form.

SPECIAL INTERROGATORY NO. 8:

State whether, at any time during the RELEVANT PERIOD, YOU formed a clinical opinion that PLAINTIFF had achieved or was approaching the criteria for treatment completion. If yes, state the date and the basis. If no, state all reasons.

RESPONSE TO SPECIAL INTERROGATORY NO. 8:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrase "criteria for treatment completion." Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party further objects to the extent this request calls for a legal conclusion and/or expert opinion. Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq.

Subject to and without waiving the above objections, Responding Party responds as follows:

No, because Plaintiff had not completed required treatment phases.

SPECIAL INTERROGATORY NO. 9:

State YOUR personal involvement, if any, in the preparation, review, approval, or filing of the Treatment Completion Plan dated October 18, 2023, authored by HOPE clinician identified as

"Bernadette," concerning PLAINTIFF, and IDENTIFY all DOCUMENTS reflecting that involvement.

RESPONSE TO SPECIAL INTERROGATORY NO. 9:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the term "personal involvement", "Treatment Completion Plan", and "Bernadette".

Subject to and without waiving the above objections, Responding Party responds as follows:

None.

SPECIAL INTERROGATORY NO. 10:

State YOUR personal involvement, if any, in any decision not to present, review with, or provide a copy of the Treatment Completion Plan referenced in Special Interrogatory No. 9 to PLAINTIFF, and state all reasons.

RESPONSE TO SPECIAL INTERROGATORY NO. 10:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the as to the phrase "personal involvement." Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq.

Subject to and without waiving the above objections, Responding Party responds as follows:

None.

SPECIAL INTERROGATORY NO. 11:

Describe each Mason-protocol progress review, structured progress assessment, or comparable validated risk-or-progress instrument that YOU personally administered to PLAINTIFF or directed to be administered to PLAINTIFF during the RELEVANT PERIOD, including the date,

the administering clinician, the score or result, and the present location of each.

RESPONSE TO SPECIAL INTERROGATORY NO. 11:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrases "Mason-protocol", "structured progress assessment", "comparable validated-risk-or-progress instrument"," and "personally administered". Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party also objects that this request is compound, conjunct and disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the above objections, Responding Party responds as follows:

Responding Party has no knowledge of "Mason-protocol progress review, structured progress assessment, or comparable validated risk-or-progress instrument".

SPECIAL INTERROGATORY NO. 12:

State, verbatim or in substance, every statement YOU made at the August 2025 CTM concerning PLAINTIFF (FAC ¶ 24), including statements that PLAINTIFF was "disruptive," a "ringleader," "abhorrent," or "often disrespectful," or that his demeanor was an "acting job," or words to that effect, and for each statement state all facts supporting it and IDENTIFY all DOCUMENTS supporting it.

RESPONSE TO SPECIAL INTERROGATORY NO. 12:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrases "demeanor" and "words to that effect". Responding Party also objects that this request is overbroad

and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence.

Subject to and without waiving the above objections, Responding Party responds as follows:

Responding Party cannot verbatim or in substance every statement made at the August 2025 CTM. Responding Party does recall stating words to the effect that Plaintiff could be disruptive and a ringleader, because Plaintiff made comments that triggered other clients to engage in discussion that was unhelpful for treatment. The comments were based on Responding Party's observations made during group therapy sessions.

SPECIAL INTERROGATORY NO. 13:

State all reasons YOU stated, in substance, at the August 2025 group session at the STOCKTON FACILITY, that HOPE "routinely loses client homework packets," or words to that effect.

RESPONSE TO SPECIAL INTERROGATORY NO. 13:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrase "word to that effect." Responding Party objects that this interrogatory calls for an assumption. Responding Party also objects that this request is compound and disjunct and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the above objections, Responding Party responds as follows:

Responding Party did not make the alleged statement.

SPECIAL INTERROGATORY NO. 14:

IDENTIFY every statement YOU made to PLAINTIFF, or in PLAINTIFF's presence, during the RELEVANT PERIOD concerning his treatment progress, his homework completion, his eligibility for phase progression, or his eligibility for treatment completion.

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RESPONSE TO SPECIAL INTERROGATORY NO. 14:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrase "treatment completion." Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. It is not possible to identify every statement made to Plaintiff, or in Plaintiff's presence, over the timespan of years.

Pursuant to the above objections, Responding Party cannot and will not respond.

SPECIAL INTERROGATORY NO. 15:

IDENTIFY every statement YOU made to any CDCR/DAPO parole agent during the RELEVANT PERIOD concerning PLAINTIFF, including the date, the agent, the substance, and any DOCUMENT memorializing the statement.

RESPONSE TO SPECIAL INTERROGATORY NO. 15:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrase "the substance." Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. It is not possible to identify every statement made to unidentified CDCR/DAPO parole agents over the timespan of years. Responding Party objects further to this interrogatory as it seeks to violate a third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844.

Pursuant to the above objections, Responding Party cannot and will not respond.

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SPECIAL INTERROGATORY NO. 16:

Describe in detail every component of YOUR compensation from HOPE during the RELEVANT PERIOD, including base salary, hourly rate, bonus, commission, profit-sharing, retention payment, performance-based pay, equity, partnership distribution, or any other form of remuneration.

RESPONSE TO INTERROGATORY NO. 16:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party also objects that this request is compound, conjunct and disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component. Responding Party also objects to this interrogatory on the grounds that it seeks information protected by the constitutional right to privacy under Article I, section 1 of the California Constitution, including confidential financial, payroll, compensation, and/or personnel information concerning non-party employees. The interrogatory is not narrowly tailored, is overbroad as to time, scope, and persons covered, and seeks private information that is not directly relevant to the claims or defenses in this action. Plaintiff has not demonstrated a compelling need for disclosure sufficient to outweigh the affected privacy interests. Responding Party further objects that any disclosure of such information, if ordered, should be limited to information directly relevant to the claims and defenses, redacted as appropriate, subject to notice to affected employees if required, and governed by an appropriate protective order. Responding Party further objects to the extent the interrogatory seeks confidential trade secret, proprietary, financial, or competitively sensitive information, including but not limited to internal business operations, payroll practices, compensation structure, revenue, profit, expenses, or other financial data. Any disclosure of such information, if ordered, should be subject to an appropriate protective order and limited to information directly relevant to the claims and defenses in this action. Responding Party also objects that this request is

compound and conjunct and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Pursuant to the above objections, Responding Party cannot and will not respond to this special interrogatory.

SPECIAL INTERROGATORY NO. 17:

State whether any portion of YOUR compensation during the RELEVANT PERIOD was tied, in whole or in part, to: (a) the number of parolees enrolled at the STOCKTON FACILITY; (b) the duration of any parolee's enrollment; (c) the number of sessions, individual or group, delivered at the STOCKTON FACILITY; (d) the number of CTMs attended; (e) site-level revenue or profit; or (f) any comparable metric. For each "yes," describe the formula and the calendar years in which it applied.

RESPONSE TO SPECIAL INTERROGATORY NO. 17:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrases "tied", "in whole or in part", "portion." Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party objects further to this interrogatory as it seeks to violate a third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. Responding Party further objects to the extent this request calls for a legal conclusion and/or expert opinion. Responding Party also objects that this request is compound and conjunct and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component. Responding Party further objects to the extent the interrogatory seeks confidential trade secret, proprietary, financial, or competitively sensitive information, including but not limited to internal business operations, payroll practices, compensation structure, revenue, profit, expenses, or other

financial data. Any disclosure of such information, if ordered, should be subject to an appropriate protective order and limited to information directly relevant to the claims and defenses in this action.

Pursuant to the above objections, Responding Party cannot and will not respond to this special interrogatory.

SPECIAL INTERROGATORY NO. 18:

State the total compensation YOU received from HOPE in each calendar year during the RELEVANT PERIOD, broken out by component (base, bonus, etc.).

RESPONSE TO SPECIAL INTERROGATORY NO. 18:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party also objects that this request is compound, conjunct and disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component. Responding Party also objects to this interrogatory on the grounds that it seeks information protected by the constitutional right to privacy under Article I, section 1 of the California Constitution, including confidential financial, payroll, compensation, and/or personnel information. The interrogatory is not narrowly tailored, is overbroad as to time, scope, and persons covered, and seeks private information that is not directly relevant to the claims or defenses in this action. Plaintiff has not demonstrated a compelling need for disclosure sufficient to outweigh the affected privacy interests. Responding Party further objects that any disclosure of such information, if ordered, should be limited to information directly relevant to the claims and defenses, redacted as appropriate and governed by an appropriate protective order. Responding Party further objects to the extent the interrogatory seeks confidential trade secret, proprietary, financial, or competitively sensitive information, including but not limited to internal business operations, payroll practices, compensation structure, revenue, profit, expenses, or other financial data. Any disclosure of such information, if ordered, should be subject to an appropriate protective order and limited to

information directly relevant to the claims and defenses in this action.

Pursuant to the above objections, Responding Party cannot and will not respond to this special interrogatory.

SPECIAL INTERROGATORY NO. 19:

Describe each performance evaluation YOU received from HOPE during the RELEVANT PERIOD, including the evaluator, the date, the metrics evaluated, and the rating or outcome.

RESPONSE TO SPECIAL INTERROGATORY NO. 19:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrase "performance evaluation." Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party objects further to this interrogatory as it seeks to violate the right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. Responding Party further objects to the extent the interrogatory seeks confidential trade secret, proprietary, financial, or competitively sensitive information, including but not limited to internal business operations, payroll practices, compensation structure, revenue, profit, expenses, or other financial data. Any disclosure of such information, if ordered, should be subject to an appropriate protective order and limited to information directly relevant to the claims and defenses in this action.

Pursuant to the above objections, Responding Party cannot and will not respond to this special interrogatory.

SPECIAL INTERROGATORY NO. 20:

State the date YOU first became aware of DWYER and the manner in which YOU learned of it (including, e.g., from Dr. Cristina Loree, from HOPE training materials, from CASOMB communications, or from independent reading).

RESPONSE TO SPECIAL INTERROGATORY NO. 20:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the term "first became aware." Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party further objects to the extent this request calls for a legal conclusion and/or expert opinion. Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq.

Subject to and without waiving the above objections, Responding Party responds as follows:

Responding Party is not "aware of DWYER".

SPECIAL INTERROGATORY NO. 21:

Describe in detail every meeting, training, conference call, written communication, or other forum during the RELEVANT PERIOD in which DWYER was discussed in YOUR presence, including the date, the persons present, and the substance of the discussion.

RESPONSE TO SPECIAL INTERROGATORY NO. 21:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrase "describe." Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party further objects to the extent this request calls for a legal conclusion and/or expert opinion. Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq. Responding Party also objects that this request is compound

and disjunct and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the above objections, Responding Party responds as follows:

See response to Special Interrogatory No. 20.

SPECIAL INTERROGATORY NO. 22:

State the date YOU first became aware of the April 17, 2025 amendments to 15 C.C.R. section 3574, including the requirement at subsection (f)(1) that "treatment completion and parole discharge are legally separate decisions," and IDENTIFY all DOCUMENTS reflecting that awareness.

RESPONSE TO SPECIAL INTERROGATORY NO. 22:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the terms "aware" and "awareness." Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party further objects to the extent this request calls for a legal conclusion and/or expert opinion. Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq.

Subject to and without waiving the above objections, Responding Party responds as follows:

Responding Party is not aware of "the April 17, 2025 amendments to 15 C.C.R. section 3574".

SPECIAL INTERROGATORY NO. 23:

Describe in detail every action YOU personally took, if any, after becoming aware of DWYER and 15 C.C.R. section 3574(f)(1), to modify YOUR own treatment-completion recommendations or YOUR own clinical practice with respect to parolee participants.

RESPONSE TO SPECIAL INTERROGATORY NO. 23:

Responding Party objects to this interrogatory generally on the basis that it is not full and

complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the term "describe." Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq. Responding Party also objects that this request is compound, conjunct and disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the above objections, Responding Party responds as follows:

Responding Party is not "aware of DWYER and 15 C.C.R. section 3574(f)(1)".

SPECIAL INTERROGATORY NO. 24:

Describe YOUR supervisory relationship to the HOPE clinician identified as "Bernadette" who authored the October 18, 2023 Treatment Completion Plan referenced in Special Interrogatory No. 9, including the dates of supervision, the frequency of clinical-supervision sessions, and the topics discussed concerning PLAINTIFF.

RESPONSE TO SPECIAL INTERROGATORY NO. 24

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrase "performance evaluation." Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq. Responding Party objects further to this interrogatory as it seeks to violate a third party's right of privacy in violation of the California

Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. Responding Party further objects to the extent this request calls for a legal conclusion and/or expert opinion. Responding Party also objects that this request is compound and conjunct and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the above objections, Responding Party responds as follows:

Responding Party is does not know for certain who "Bernadette" refers to. Responding Party does work with Bernadette Marie Tassone. Responding Party has no supervisory relationship with Bernadette Marie Tassone.

SPECIAL INTERROGATORY NO. 25:

State whether YOU directed, instructed, or otherwise communicated to any HOPE clinician under YOUR supervision, at any time during the RELEVANT PERIOD, that PLAINTIFF (or any parolee participant) should not be deemed to have completed treatment prior to parole discharge. If yes, IDENTIFY each instance.

RESPONSE TO SPECIAL INTERROGATORY NO. 25:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrase "should not be deemed." Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party objects further to this interrogatory as it seeks to violate a third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844; *Younger v. Berkeley City Council* (1975) 45 Cal.App.3d 825, 832. Responding Party further objects to the extent this request calls for a legal conclusion and/or expert opinion. Responding Party also objects that this request is compound and

conjunct and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Pursuant to the above objections, Responding Party cannot and will not respond to this special interrogatory.

SPECIAL INTERROGATORY NO. 26:

State whether, in or about June 2024, any HOPE clinician under YOUR supervision told PLAINTIFF, in substance, that no homework completed by PLAINTIFF had been found in HOPE's records, and if yes: (a) IDENTIFY the clinician; (b) state whether the clinician consulted YOU before making that statement; (c) state YOUR response, if any; and (d) state the basis for the statement.

RESPONSE TO SPECIAL INTERROGATORY NO. 26:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrase "consulted." Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq.

Subject to and without waiving the above objections, Responding Party responds as follows:

Responding Party has no knowledge of the alleged statement by an unidentified HOPE clinician.

SPECIAL INTERROGATORY NO. 27:

State the date YOU first became aware that PLAINTIFF held a Class A Commercial Driver's License (CDL), and IDENTIFY the source of that information.

RESPONSE TO SPECIAL INTERROGATORY NO. 27:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to

§ 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party further objects to this interrogatory on the basis that it includes impermissible subparts and is compound in violation of California Code of Civil Procedure § 2030.060(f) that no interrogatory "shall contain subparts, or a compound, conjunctive, or disjunctive question."

Subject to and without waving objections and using Responding Party's own understanding of the referenced terms, Responding Party responds as follows:

Responding Party has no knowledge that PLAINTIFF "held a Class A Commercial Driver's License".

SPECIAL INTERROGATORY NO. 28:

IDENTIFY every COMMUNICATION YOU had with PLAINTIFF during the RELEVANT PERIOD concerning his CDL employment, scheduling conflicts, requests for accommodation, or missed sessions.

RESPONSE TO SPECIAL INTERROGATORY NO. 28:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party also objects to this interrogatory as overbroad insofar as it requests every communication about multiple subjects. Responding Party further objects to this interrogatory on the basis that it includes impermissible subparts and is compound in violation of California Code of Civil Procedure § 2030.060(f) that no interrogatory "shall contain subparts, or a compound, conjunctive, or disjunctive question."

Pursuant to the above objections, Responding Party cannot and will not respond.

SPECIAL INTERROGATORY NO. 29:

Describe every accommodation, alternative schedule, telehealth option, or other modification YOU offered or made available to PLAINTIFF during the RELEVANT PERIOD to accommodate his CDL employment. If none, state all reasons.

RESPONSE TO SPECIAL INTERROGATORY NO. 29:

Responding Party objects to this interrogatory generally on the basis that it is not full and

complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this interrogatory on the grounds that it is vague and ambiguous as to the terms "accommodation," "alternative schedule," "telehealth option," "other modification", and "CDL employment obligations".

Subject to and without waving objections and using Responding Party's own understanding of the referenced terms, Responding Party responds as follows:

Responding Party had no knowledge of Plaintiff's "CDL employment obligations."

SPECIAL INTERROGATORY NO. 30:

State all facts upon which YOU contend that PLAINTIFF could have maintained full-time CDL employment, including long-haul assignments, while complying with HOPE's mandatory treatment schedule and any related supervision conditions imposed in reliance on YOUR reporting.

RESPONSE TO SPECIAL INTERROGATORY NO. 30:

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party further objects to this interrogatory as it improperly requires the adoption of an assumption and calls for speculation, specifically that HOPE contends "PLAINTIFF could have maintained full-time CDL employment, including long-haul assignments, while complying with HOPE's mandatory treatment schedule, attendance requirements, CTM attendance, and any related supervision conditions imposed in reliance on HOPE's reporting".

Subject to and without waving objections and using Responding Party's own understanding of the referenced terms, Responding Party responds as follows:

Responding Party has no knowledge of Plaintiff's "full-time CDL employment" nor an opinion on whether PLAINTIFF could, or could not, have maintained full-time CDL employment,

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including long-haul assignments, while complying with his mandatory sex offender treatment and parole supervision conditions.

Dated: June 15, 2026

SIMS, LAWRENCE & BROGHAMMER

By: _____
CYNTHIA G. LAWRENCE
BRYAN L. MALONE
BLAZE VAN DINE
Attorneys for Defendants,
KATIE PALACIOS and
HOPE PROGRAM

VERIFICATION

I, KATIE PALACIOS, state and declare:

I am a defendant in the above-entitled matter, and I am authorized to make this verification on my behalf.

I have read the foregoing DEFENDANT KATIE PALACIOS' RESPONSES TO PLAINTIFF'S SPECIAL INTERROGATORIES, SET ONE and know the contents thereof. I am informed and believe the matters stated therein are true and, on that ground, I allege the matters stated therein are true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed at Stockton, California on June 15, 2026.

Katie Palacios

KATIE PALACIOS

PROOF OF SERVICE

I, Kim Schmitt, certify and declare as follows:

I am over the age of 18 years, and not a party to this action. My business address is 1478 Stone Point Drive, Suite 450, Roseville, CA 95661. My business email is: kschmitt@sims-law.net. I am employed in the County of Placer where this service occurs.

On the date set forth below, following ordinary business practice, I served a true copy of the foregoing document(s) described as:

DEFENDANT KATIE PALACIOS' RESPONSES TO PLAINTIFF'S SPECIAL INTERROGATORIES, SET ONE

☐ (BY MAIL) I am readily familiar with my employer's normal business practice for collection and processing of correspondence for mailing with the U.S. Postal Service. Correspondence so collected and processed is deposited with the U.S. Postal Service that same day in the ordinary course of business. I placed for deposit in the United States Postal Service in a sealed envelope, with postage fully prepaid, to the addressee(s) below.

☐ (BY PERSONAL SERVICE) I personally delivered the above document(s) by hand between 9:00 a.m. and 5:00 p.m. to the office of the addressee(s) below.

☐ (BY OVERNIGHT DELIVERY) I deposited in a box or other facility regularly maintained by Federal Express an express service carrier, or delivered to a courier or driver authorized by said express service carrier to receive such envelope(s) to be delivered by overnight delivery, with delivery fees paid or provided for, addressed to the person(s) on whom it is to be served below.

☒ (BY ELECTRONIC SERVICE) I transmitted via electronic service through electronic mail to the offices of the addressee(s) below as stated on the attached service list on this date before 5:00 p.m.

SEE ATTACHED SERVICE LIST

☒ (State) I certify and declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on: June 15, 2026

Kim Schmitt

SERVICE LIST

Brendan Ngehsi Newanforbi Plaintiff, in Pro Per 1455 Cat Tail Drive Stockton, CA 95204 (209) 801-4442 E: bnn.cdl@gmail.com	**PLAINTIFF, IN PER**